



U.S. Department  
of Transportation

**Pipeline and Hazardous  
Materials Safety  
Administration**

**January 05, 2022**

1200 New Jersey Avenue, SE  
Washington, DC 20590

DOT-SP 9998  
(FOURTEENTH REVISION)

**EXPIRATION DATE: 2025-11-30**

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: Accumulators, Inc.  
Houston, TX
2. PURPOSE AND LIMITATION:
  - a. This special permit authorizes the transportation in commerce of certain steel hydraulic accumulators containing compressed nitrogen, a Division 2.2 material. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
  - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce, including loading and unloading.
  - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.302(a) in that non-DOT specification packaging is not authorized, except as specified herein.
5. BASIS: This special permit is based on the application of Accumulators, Inc. dated November 12, 2021, submitted in accordance with § 107.109.

Tracking Number: 2021114736

6. HAZARDOUS MATERIALS (49 CFR 172.101):

| <b>Hazardous Materials Description</b> |                                   |                              |                      |
|----------------------------------------|-----------------------------------|------------------------------|----------------------|
| <b>Proper Shipping Name</b>            | <b>Hazard Class/<br/>Division</b> | <b>Identification Number</b> | <b>Packing Group</b> |
| Nitrogen, compressed                   | 2.2                               | UN1066                       | N/A                  |

7. SAFETY CONTROL MEASURES:

- a. PACKAGING: Prescribed packagings are seamless steel hydraulic accumulators having a design margin of at least 3.5:1, a capacity of not more than 15 gallons, and must have a design pressure not to exceed 6,000 psig, with the exception of models A(X)8.5100 (8,500 psig) and A(X)10100 (10,000 psig). The accumulators must be designed and fabricated in full compliance with Section VIII of the ASME Code and the following drawings of Accumulators, Inc. on file with the Office of Hazardous Materials Safety:

| <b>DRAWING NUMBER</b>                       | <b>DATE</b> |
|---------------------------------------------|-------------|
| AXTR5100 / AXTR6100                         | 10/07/96    |
| AX5100 / AX6100                             | 10/07/96    |
| AXTR3100 / AXTR4100                         | 10/04/96    |
| AX3100 / AX4100                             | 10/04/96    |
| A(X)2100(Y)AS / A(X)3100(Y) / A(X)TR3100(Y) | 9/27/19     |
| A1200(X)AS / A1QT3100(X) / A13100(X)        | 10/7/19     |
| A(X)TR2100(Y)AS                             | 10/4/19     |
| A1QT5100(X)                                 | 10/14/19    |
| A(X)5100(Y)                                 | 8/17/20     |
| A(X)8.5100                                  | 8/18/20     |
| A(X)10100                                   | 8/18/20     |

Each accumulator must be constructed to relieve pressure without bursting in a fire or must be equipped with a safety device as required in § 173.301(f).

b. TESTING: Accumulators must be tested without evidence of failure or damage, to at least one and one-half times the design pressure prior to each refill and reshipment.

c. OPERATIONAL CONTROLS:

(1) Charged pressure, at 70 °F, for shipment may not exceed 70 percent of the design pressure.

(2) Each accumulator must be shipped as an inside packaging in accordance with § 173.301(a)(9).

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modifications or changes are made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

c. MARKING: Each outside packaging must be marked “DOT-SP 9998” and “NITROGEN-HYDRAULIC ACCUMULATORS”.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo vessel, and cargo-only aircraft.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel and aircraft used to transport packages covered by this special permit. The shipper must furnish a current copy of this special permit to the air carrier before or at the time any air shipment is tendered.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.

o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.

- o Registration required by § 107.601 et seq., when applicable.

Each “Hazmat employee”, as defined in § 171.8 who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when the special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU) - 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover  
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: VC/TG